

Court No. - 32

Case :- WRIT - C No. - 17882 of 2022

Petitioner :- Amit Kumar

Respondent :- State Of U P And 6 Others

Counsel for Petitioner :- Pankaj Kumar Tyagi, Shantanu Bhardwaj

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vikram D. Chauhan, J.

Heard learned counsel for the petitioner and Sri Abhishek Srivastava learned Advocate has put in appearance on behalf of respondent nos. 2 to 6.

The petitioner herein seeks to challenge the communication dated 30.5.2022 issued by the Executive Engineer, Electricity Urban Distribution Division-VII, 33/11 KV Sub Station, Sector-62 C, NOIDA namely respondent no. 5 whereby the petitioner who is a tenant of the premises in question has been asked to get the consent of the landlord to grant him electricity connection.

It is submitted by the learned counsel for the petitioner that the owner/landlord of the premises in question has refused to give consent and further objected to grant of electricity connection in the name of the petitioner.

On the affidavit submitted by the owner/landlord of the premises in question that no electricity connection be granted without his consent, the letter dated 30.5.2022 has been issued.

Sri Abhishek Srivastava learned Advocate has put in appearance on behalf of the respondent nos. 2 to 6. On a query made by the Court, he agrees that in case of refusal to give consent by the landlord, the electricity connection in the name of the tenant can be granted by complying the provisions of Clause 4.4 of the Electricity Supply Code, 2005, wherein an indemnity bond as per Annexure 4.2 is to be submitted by the applicant namely the petitioner herein.

Learned counsel for the petitioner, at this stage, submits that the petitioner is ready to furnish the indemnity bond.

For the aforesaid, without entering into the merits of the claim of the petitioner, the present writ petition is being **disposed of** with the observation that if the petitioner complies with the

condition of Clause 4.4 of the Electricity Supply Code, 2005 in furnishing the indemnity bond as per Annexure 4.2 and fulfils all other necessary formalities, the respondent no. 5 namely the Executive Engineer, Electricity Urban Distribution Division-VII, 33/11 KV Sub Station, Sector-62 C, NOIDA shall pass an appropriate order for grant of electricity connection in the name of the petitioner ignoring the objection of the landlord.

Order Date :- 29.6.2022

Brijesh